

Mazzoo Khan v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 May 2014 · WRIT - C No. - 25715 of 2014 · **Writ dismissed; relegated to clause 6.5(b).**

HEADNOTE

A consumer challenging electricity bills and seeking a writ direction to decide a representation was refused relief and relegated to the alternative remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005; the writ petition was dismissed.

FACTUAL SUMMARY

Mazzoo Khan, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., filed a writ petition in the Allahabad High Court challenging electricity bills issued to him on various grounds. He sought a direction that the authority decide his representation against those bills. Counsel for the petitioner and for the distribution company were heard on 6 May 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

alternative remedy for billing dispute

HOLDING

A consumer aggrieved by electricity bills on various grounds has an alternative remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 before the competent authority; a writ seeking a direction to decide a representation is not liable to be granted and the petition stands dismissed, with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS AND THE REPRESENTATION

The Court did not examine the grounds of challenge to the bills or the representation; the writ was dismissed solely because clause 6.5(b) afforded an alternative remedy. ¶ 1